

House File 309

S-3081

1 Amend House File 309, as passed by the House, as follows:

2 1. Page 1, before line 1 by inserting:

3 <Section 1. Section 135C.16, subsection 1, Code 2025, is
4 amended to read as follows:

5 1. In addition to the inspections required by sections
6 135C.9 and 135C.38, the department shall make or cause to be
7 made such further unannounced inspections as it deems necessary
8 to adequately enforce this chapter. ~~At~~ On average, at least
9 one general unannounced inspection shall be conducted for each
10 health care facility within a ~~thirty-month~~ twelve-month period,
11 not to exceed a period of fifteen months. The inspector shall
12 show identification to the person in charge of the facility
13 and state that an inspection is to be made before beginning
14 the inspection. An employee of the department who gives
15 unauthorized advance notice of an inspection made or planned
16 to be made under this subsection or section 135C.38 shall be
17 disciplined as determined by the director, except that if the
18 employee is employed pursuant to the merit system provisions of
19 chapter 8A, subchapter IV, the discipline shall not exceed the
20 discipline authorized pursuant to that subchapter.

21 Sec. _____. Section 135C.36, subsection 1, Code 2025, is
22 amended to read as follows:

23 1. A class I violation is one which presents an imminent
24 danger or a substantial probability of resultant death or
25 physical harm to the residents of the facility in which
26 the violation occurs. A physical condition or one or more
27 practices in a facility may constitute a class I violation. A
28 class I violation shall be abated or eliminated immediately
29 unless the department determines that a stated period of time,
30 specified in the citation issued under section 135C.40, is
31 required to correct the violation. A licensee is subject to
32 a penalty of not less than ~~two~~ five thousand nor more than
33 ten thousand dollars for each class I violation for which the
34 licensee's facility is cited.

35 Sec. _____. Section 135C.36, Code 2025, is amended by adding

1 the following new subsection:

2 NEW SUBSECTION. 1A. A class I violation includes any
3 confirmed instance of a facility retaliating against a resident
4 or employee for filing a complaint or otherwise cooperating
5 with the department or the office of long-term care ombudsman.

6 Sec. _____. Section 135C.38, subsection 1, paragraph a, Code
7 2025, is amended to read as follows:

8 a. Upon receipt of a complaint made in accordance with
9 section 135C.37, the department shall make a preliminary review
10 of the complaint. Unless the department concludes that the
11 complaint is intended to harass a facility or a licensee or is
12 without reasonable basis, the department shall make or cause
13 to be made an on-site inspection of the health care facility
14 which is the subject of the complaint within the time period
15 determined pursuant to the following guidelines, which period
16 shall commence on the date of receipt of the complaint:

17 (1) For nursing facilities, an on-site inspection shall be
18 initiated as follows:

19 (a) Within ~~two~~ one working ~~days~~ day for a complaint
20 determined by the department to be an alleged immediate
21 jeopardy situation.

22 (b) Within ~~ten~~ five working days for a complaint determined
23 by the department to be an alleged high-level, nonimmediate
24 jeopardy situation.

25 (c) Within forty-five calendar days for a complaint
26 determined by the department to be an alleged nonimmediate
27 jeopardy situation, other than a high-level situation.

28 (2) For all other types of health care facilities, an
29 on-site inspection shall be initiated as follows:

30 (a) Within ~~two~~ one working ~~days~~ day for a complaint
31 determined by the department to be an alleged immediate
32 jeopardy situation.

33 (b) Within ~~twenty~~ five working days for a complaint
34 determined by the department to be an alleged high-level,
35 nonimmediate jeopardy situation.

1 (c) Within forty-five calendar days for a complaint
2 determined by the department to be an alleged nonimmediate
3 jeopardy situation, other than a high-level situation.>

4 2. Page 1, after line 14 by inserting:
5 <Sec. _____. Section 135C.44, Code 2025, is amended to read
6 as follows:
7 **135C.44 Treble Additional fines for repeated violations.**
8 The penalties authorized by section 135C.36 shall be ~~trebled~~
9 quadrupled for a second or subsequent class I ~~or violation and~~
10 tripled for a second or subsequent class II violation occurring
11 within any twelve-month period if a citation was issued for the
12 same class I or class II violation occurring within that period
13 and a penalty was assessed ~~therefor~~ for the violation.

14 Sec. _____. DEPARTMENT OF INSPECTIONS, APPEALS, AND LICENSING
15 — NURSING FACILITY INSPECTORS AND ASSISTED LIVING PROGRAM
16 MONITORS.

17 1. There is appropriated from the general fund of the state
18 to the department of inspections, appeals, and licensing for
19 the fiscal year beginning July 1, 2025, and ending June 30,
20 2026, the following amount, or so much thereof as is necessary,
21 to be used for the purposes designated:
22 To employ additional nursing facility inspectors and
23 assisted living program monitors to perform additional
24 safety inspections, including salaries, support, maintenance,
25 miscellaneous purposes, and for not more than the following
26 full-time equivalent positions:

27	\$	600,000
28	FTEs	30

29 2. Moneys appropriated in this section of this Act shall be
30 in addition to moneys received from federal matching funds.>

31 3. Title page, by striking lines 1 through 3 and inserting
32 <An Act relating to health care facilities, providing
33 penalties, and making an appropriation.>

34 4. By renumbering as necessary.

JANICE WEINER